Rule 2.86—Form 5: ***Application to Expunge Prostitution Court Records under Iowa Code section 725.1***

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for Pottawattamie **County**
County where you are filing this Application

State of Iowa or _____ vs. Alexandria Catherine Montgomery-Washington **Defendant**	Case no. FECR987654321 **Application to Expunge Prostitution Court Records under Iowa Code section 725.1** If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 725.1(1)(*c*). In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☒ Defendant was convicted for a violation of Iowa Code section 725.1(1)(*a*), prostitution, or of a similar local ordinance on:
December (*Month*) 31 (*Day*), 2021 (*Year*)

2. ☐ Defendant was under the age of eighteen when Defendant engaged in the illegal sex act or acts I was found guilty of committing.

3. ☒ Defendant has had no criminal convictions other than local traffic violations or simple misdemeanor violations under Iowa Code chapter 321 during the two-year period following the conviction.

Read Before Signing
Please check each statement below after you have read it.

☒ **I understand** that I must provide a copy of this application to the county attorney.

☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

Continue to next page

Signature

Check one

A. ☐ Defendant is self-represented.

If you check A*, you must fill in the following information:*

I, Alexandria Catherine Montgomery-Washington, have read this Application, and I certify under penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

Print your full name: first, middle, last

_____ _____, 20____ _____

Month *Day* *Year* *Self-represented defendant's signature**

1188 Long Meadow Boulevard, Apartment 1407

Mailing address

Council Bluffs, IA 51503-4417

City *State* *ZIP code*

(712) 555-0199 ext. 4417 alexandria.montgomery.washington@example.org

Phone number *Email address*

**This form may be signed either by using a digitized signature, see instructions at https://www.iowacourts.gov/for-the-public/court-forms/, or by printing and hand-signing.*

B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.

If you check B*, you must fill in the following information:*

_____ _____, 20____ _____

Month *Day* *Year* *Attorney's signature*

_____

Name of law firm, if applicable

_____

Mailing address

_____, _____ _____

City *State* *ZIP code*

(_____) _____

Phone number

_____ _____

Email address *Additional email address, if applicable*

Certification of Service by Mailing or Delivery

If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.

I, _____, certify that on _____ _____, 20____,

Print your full name: first, middle, last *Month* *Day* *Year*

I mailed or gave a copy of this Application to the county attorney at this address:

_____

Name of person to whom I delivered or mailed it

_____, _____, _____ _____

Mailing address *City* *State* *ZIP code*